

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Opoku-Agyemang	Team: Squad #05	CCRB Case #: 201403796	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 04/21/2014 3:15 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/21/2015	Precinct: 113		
Date/Time CV Reported Mon, 04/21/2014 3:37 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/21/2014 3:37 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			DB GLD
2. Officers			DB GLD
3. SGT Derrick Milligan	04735	918006	INT CIS
4. POM Brian Coffey	24049	928092	DB GLD
5. POM Junior Celestin	11614	941524	DB GLD

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Adam Gray	2500	928419	113 PCT
2. POM James Frascatore	11981	950440	DB GLD
3. POM Derek Webber	21329	949786	113 PCT
4. POM Ryan Dunn	16781	944526	113 PCT
5. POM Carmelo Stracuzzi	19479	951305	113 PCT
6. LT Nicholas Vandyke	00000	927819	113 PCT
7. SGT Adam Seidenberg	03013	931198	DB GLD
8. POM William Neville	13746	949390	DB GLD
9. POM Matthew Debonis	08643	948859	DB GLD
10. POM Frank Calafiore	03387	941484	DB GLD
11. POM Jason Rosen	07290	943761	DB GLD
12. POM Kevin Stewart	11875	939534	DB GLD
13. POM Joseph Osolin	28774	944136	DB GLD

Officer(s)	Allegation	Investigator Recommendation
A . POM Brian Coffey	Abuse: At § 87(2)(b) in Queens, PO Brian Coffey stopped § 87(2)(b) and § 87(2)(b)	A . Unsubstantiated
B . An officer	Abuse: At § 87(2)(b) in Queens, an officer stopped § 87(2)(b) and § 87(2)(b)	B . Officer(s) Unidentified
C . POM Brian Coffey	Discourtesy: At § 87(2)(b) in Queens, PO Brian Coffey acted rudely toward § 87(2)(b)	C . Unfounded

Officer(s)	Allegation	Investigator Recommendation
D . Officers	Abuse: Officers entered the backyard of § 87(2)(b) in Queens.	D . Exonerated
E . SGT Derrick Milligan	Abuse: Sgt. Derrick Milligan searched the backyard of § 87(2)(b) in Queens.	E . Substantiated
F . POM Junior Celestin	Abuse: At § 87(2)(b) in Queens, PO Junior Celestin threatened to arrest § 87(2)(b)	F . Unsubstantiated

Case Summary

At approximately 3:15 p.m. on April 21, 2014, § 87(2)(b) and her daughter § 87(2)(b) were allegedly stopped by two officers, PO Brian Coffey and an unidentified officer from the Queens South BLAST (Burglary, Larceny, And Surveillance Team) unit, which is part of the Detectives Bureau Grand Larceny Division, in front of their residence, § 87(2)(b), as they were returning home together from work and school, respectively (**Allegation A and B**). § 87(2)(b) alleged that PO Coffey tossed her identification card to her, causing it to fall to the ground (**Allegation C**).

After the two officers left, § 87(2)(b) and § 87(2)(b) entered the house. Shortly thereafter, they, along with § 87(2)(b)'s mother, § 87(2)(b) observed officers walking into their backyard. § 87(2)(b) and § 87(2)(b) entered the backyard and observed that there were officers already in the backyard (**Allegation D**). Additional officers entered the backyard and the officers, under the supervision of Sgt. Derrick Milligan of the Intelligence Division, acting as the Field Intelligence Officer (FIO) of the 113th Precinct, began searching through the backyard (**Allegation E**). The officers recovered a handgun in a bag in a barbeque pit in the backyard. The officers informed the females that they had § 87(2)(b)'s son, § 87(2)(b) and his friends, identified via the investigation as § 87(2)(b) and § 87(2)(b), in custody in regards to the gun. An officer, identified via the investigation as PO Junior Celestin of the Queens South BLAST unit, allegedly threatened to arrest § 87(2)(b) (**Allegation F**). After the officers left the house, § 87(2)(b) and § 87(2)(b)'s husband, § 87(2)(b) went to the 113th Precinct stationhouse and spoke with an officer who identified himself as Det. Adam Gray of the 113th Precinct.

§ 87(2)(b), § 87(2)(g)

Mediation, Civil and Criminal Histories

As of August 10, 2015, over 11 months after the 90-day filing deadline, no Notice of Claim had been filed against the City of New York in regards to this incident. Though they were neither victims nor witnesses to this incident, due to connection of § 87(2)(b) and § 87(2)(b) arrests to this incident, this case was deemed unsuitable for mediation. § 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the second CCRB case involving § 87(2)(b) and § 87(2)(b) § 87(2)(b)
- This is the first CCRB case involving § 87(2)(b) (BR2).
- Sgt. Milligan has been a member of the NYPD for 19 years and has had 24 previous CCRB allegations in 11 cases with three substantiated allegations. In regards to CCRB case #201015506, an allegation of using a flashlight as a club was substantiated against Sgt. Milligan. In CCRB case #201110512, a vehicle search allegation was substantiated against Sgt. Milligan. In CCRB case #201405096, a failure to show a search warrant allegation was substantiated against Sgt. Milligan. § 87(2)(g)
- PO Coffey has been a member of the NYPD for 14 years and has had 20 previous CCRB allegations

in nine cases with one substantiated allegation for a frisk in CCRB case #201013421. § 87(2)(g)

- PO Celestin has been a member of the NYPD for nine years and has had 4 previous CCRB allegations in one case with no substantiated allegations. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) and § 87(2)(b) consistently described two officers who stopped § 87(2)(b) and § 87(2)(b) on the sidewalk outside their house. § 87(2)(b) described both officers as approximately 5'9" to 5'10" tall white males, one with "blondish" hair and the other with brown hair. § 87(2)(b) described both officers as approximately 5'7" tall white males, one with blond hair, who tossed her identification card at her, and the other with brown hair. § 87(2)(b) could not estimate the heights of the officers but described both of them as white males, one with brown hair and a beard and the other with black hair, who was shorter than the officer with brown hair. When shown photographs of all the officers identified via the investigation as having possibly been present for this incident, § 87(2)(b) could not identify any of them as the officers who stopped § 87(2)(b) and § 87(2)(b). § 87(2)(b) identified PO Coffey, an approximately 5'9" tall white male with blond hair and a beard from the Queens South BLAST unit, as one of the officers who stopped her and her daughter; § 87(2)(b) identified Det. Gray, an approximately 6'2" tall white male with dark brown hair from the 113th Precinct, as one of the officers who stopped her and her mother.

The officers' accounts of this incident consistently noted that some of the officers from the BLAST unit, including PO Coffey, went first to § 87(2)(b) while Det. Gray, Sgt. Milligan, and the remaining BLAST team officers apprehended § 87(2)(b) and § 87(2)(b) at § 87(2)(b). § 87(2)(g)

- According to PO Coffey and PO Frank Calafiore and PO Junior Celestin of the Queens South BLAST unit, they received a call from an unidentified supervisor from their command, who informed them that § 87(2)(e), § 87(2)(f)

instructed them to “secure” the location until the officers from the 113th Precinct arrived. Several officers from the Queens South BLAST unit proceeded to enter the backyard of § 87(2)(b), though they deny searching it at this time. Shortly thereafter, Sgt. Milligan and Det. Gray arrived at the backyard of the house and searched it, recovering the bag with the firearm in the process. § 87(2)(g)

- § 87(2)(b) described the officer who spoke to her and threatened to arrest her in the backyard as a taller than 5’9” tall black male with a slim build. § 87(2)(b) could not identify this officer in the photographs that were shown to her. Both § 87(2)(b) and § 87(2)(b) identified PO Celestin, a 5’11” tall, 150 pound black male, as the officer whom they observed speaking to § 87(2)(b) in the backyard. § 87(2)(g)

Allegations Not Pleaded

- **Search:** § 87(2)(b) alleged in her sworn statement that an officer reached into her mother’s bag and searched inside it. § 87(2)(b) stated that when an officer asked her what was in her bag she offered to show him what was in there and the officer replied, “No, don’t go in your bag.” She denied that an officer ever reached into or made contact with her bag. § 87(2)(g)
- **Threat of Arrest:** § 87(2)(b) alleged that, at the stationhouse, Det. Gray threatened to arrest § 87(2)(b) made no such allegation in either her telephone statement or her sworn statement. § 87(2)(g)

- § 87(2)(g)

Recommendations

Allegation A – Abuse of Authority – At § 87(2)(b) PO Brian Coffey stopped

§ 87(2)(b) and § 87(2)(b)

Allegation B – Abuse of Authority – At § 87(2)(b) an officer stopped § 87(2)(b)

and § 87(2)(b)

§ 87(2)(b) filed her initial complaint on April 21, 2014, and provided a sworn statement on May 1, 2014. § 87(2)(b) provided a sworn statement on May 1, 2014, as well. § 87(2)(b) provided a telephone statement on May 13, 2014, and a sworn statement on May 22, 2014. § 87(2)(b) provided a sworn statement on May 22, 2014 as well. The CCRB interviewed Det. Gray on April 22, 2015, Sgt. Milligan on May 12, 2015, PO Frascatore on May 29, 2015, PO Clafiore and PO Celestin on July 8, 2015, and PO Coffey on July 29, 2015. § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) stated that two officers, one of whom was

identified as PO Coffey, stopped § 87(2)(b) and § 87(2)(b) on the sidewalk outside their house as they were on their way home. In her telephone statement, § 87(2)(b) stated that one of the officers informed her and her mother that they stopped them because they had to “secure the area.” Shortly after the officers allowed them into the house, they observed officers going in their backyard. § 87(2)(b) and § 87(2)(b) immediately went to the backyard, while § 87(2)(b) followed them out a few minutes later. § 87(2)(b) stated that she observed some officers already in the backyard and others in the process of entering the backyard as she herself entered.

PO Coffey recalled having spoken with female residents of the house in the backyard of the house but had no recollections of having stopped or interacted with any of them in front of the house. Det. Gray, Sgt. Milligan, PO Frascatore, PO Calafiore, and PO Celestin denied having stopped any of the female residents of the house in front of the house or being aware of any officers having done so. The handwritten 113th Precinct Stop, Question and Frisk Index (BR3) shows no Stop, Question and Frisk Reports filed for any stops in the vicinity of § 87(2)(b) or of § 87(2)(b) and § 87(2)(b).

§ 87(2)(g) Around the date of the incident, the Queens South BLAST unit was conducting an investigation into a burglary pattern that was occurring within the 113th Precinct, with § 87(2)(b) as their suspect. The unit’s investigation consisted of having officers in vehicles and on foot conducting surveillance of his residence, § 87(2)(b), and of his movements. At the same time, the 113th Precinct Field Intelligence Officers, Sgt. Milligan and Det. Gray, were also conducting an investigation into § 87(2)(b). Det. Gray described § 87(2)(b) as “a tracked and known” member of the EBK (“Everybody Killer”) gang, and a “known” burglar. Sgt. Milligan and Det. Gray were aware of the BLAST unit’s investigation but the two investigations were unconnected.

§ 87(2)(e), § 87(2)(f)

Sgt. Milligan and Det. Gray went to § 87(2)(b) and parked half a block to a block from § 87(2)(b).

§ 87(2)(e), § 87(2)(f)

Sgt. Milligan could see the white Dodge Charger and observed § 87(2)(b) and a second individual, whom Sgt. Milligan knew as § 87(2)(b), going back and forth approximately two to three times from the vehicle to the rear of § 87(2)(b). Sgt. Milligan did not see any individuals aside from § 87(2)(b) and § 87(2)(b) going back and forth from the car to the backyard. At one point Sgt. Milligan observed one of them carrying “a nylon or canvas-y type of bag with a drawstring.” Sgt. Milligan did

not recall where the bag was carried to or from or who was carrying it. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) Sgt. Milligan and Det. Gray then observed § 87(2)(b) and § 87(2)(b) returned to the car and enter it. Sgt. Milligan did not observe either of them carrying the bag he had seen earlier.

The Dodge Charger pulled off towards Linden Boulevard. Sgt. Milligan and Det. Gray followed and pulled it over at § 87(2)(b). Officers from the BLAST team and the 113th Precinct anti-crime unit came to § 87(2)(b) to back up Sgt. Milligan and Det. Gray on the vehicle stop. The officers removed the occupants from the Dodge Charger and detained them. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) (In his narrative, Sgt. Milligan stated that the officers arrested two individuals in the car. Later in the interview, however, Sgt. Milligan stated that § 87(2)(b) was “present” with § 87(2)(b) and § 87(2)(b) at the time of their arrest but that it was determined that he had nothing to do with the firearm. § 87(2)(b) was found to be in § 87(2)(b)).

§ 87(2)(e), § 87(2)(f)

§ 87(2)(b) Sometime later, PO Frascatore did not recall what time or how long after he received the information, he observed a vehicle pull up at the house and observed § 87(2)(b) exit the vehicle with approximately two or three individuals. PO Frascatore proceeded to inform Det. Gray that § 87(2)(b) had returned home and that he was in possession of a black bag.

PO Calafiore, PO Celestin, and PO Coffey stated that, § 87(2)(e), § 87(2)(f)

§ 87(2)(b) instructed them to “secure the backyard” of the house and meet the 113th Precinct FIO there. PO Calafiore, PO Coffey, PO Celestin and other members of the BLAST unit proceeded to enter and stand in the backyard of the house “in order to prevent anyone from taking anything in or out of the backyard.” PO Coffey, PO Celestin, and PO Calafiore all stated that they observed females entering the backyard from inside the house shortly after they entered the backyard and PO Coffey and PO Celestin acknowledged having spoken with the females in the backyard. None of them, however, recalled having stopped or interacted with any females in front of the house or having observed any other officers do so. Shortly after the first group of BLAST unit officers, including PO Calafiore, PO Coffey, and PO Celestin, entered the backyard, Sgt. Milligan, Det. Gray, and other members of the BLAST unit arrived and entered the backyard as well.

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation A** be **Unsubstantiated** and **Allegation B** be closed as **Officer Unidentified**.

Allegation C – Discourtesy – At § 87(2)(b), **PO Brian Coffey acted rudely toward** § 87(2)(b)

§ 87(2)(b) alleged that PO Coffey requested her identification and, once she handed it to him, he tossed it back to her, causing it to fall to the ground. § 87(2)(b) and § 87(2)(b) provided accounts of this sequence that contradicted § 87(2)(b)'s account.

§ 87(2)(b) stated that, after stopping her and § 87(2)(b) PO Coffey asked her, "What's in your bag?" § 87(2)(b) replied, "Let me go in there and show you what's in there," but PO Coffey quickly replied, "No, don't go in your bag." PO Coffey then asked to see § 87(2)(b)'s identification. § 87(2)(b) replied that it was in her bag. PO Coffey then said, "Ok, go in your bag now." § 87(2)(b) reached into her bag and took out her identification and handed it to the officer. At the end of the stop, PO Coffey, who was standing approximately three to five feet from § 87(2)(b) tossed her identification towards her and said, "You can go into the house now." § 87(2)(b)'s identification then fell to the ground. § 87(2)(b) noted that the officers never made physical contact with her, her daughter, or her bag.

In her telephone statement, § 87(2)(b) alleged that the officers asked them, "What do you have in your bag? What do you have in your pocket?" § 87(2)(b) and § 87(2)(b) showed what they had on them to the officers. In her sworn statement, § 87(2)(b) stated that PO Coffey first asked for her and her mother's identifications. § 87(2)(b) attempted to retrieve her identification from the inside pocket of her denim jacket and § 87(2)(b) went into her pocketbook. The officers told them to stop doing that, which they did. She stated that she and her mother never gave their identifications to the officers at any point during the incident. PO Coffey then asked § 87(2)(b) what she had in her bag and § 87(2)(b) said she had her tablet and her keys. The unidentified officer then said, "Let me go in there, let me see what you have." § 87(2)(b) then opened her bag and the unidentified officer reached into it and "shuffled things around." Nothing fell out of the bag. However, later, § 87(2)(b) took out her wallet out of her bag and a baby picture fell out, which § 87(2)(b) retrieved from the ground.

§ 87(2)(b) stated that when the officer asked § 87(2)(b) what was in her bag, § 87(2)(b) opened her bag and told the officers, "Look and see." Objects fell out of § 87(2)(b)'s bag when she opened it and the officers bent down, picked them up, and handed them to § 87(2)(b). She stated that the officers never touched § 87(2)(b)'s bag.

§ 87(2)(g)
It is therefore recommended that **Allegation C** be **Unfounded**.

Allegation D – Abuse of Authority – Officers entered the backyard of § 87(2)(b)

Allegation E – Abuse of Authority – Sgt. Derrick Milligan searched the backyard of § 87(2)(b)

§ 87(2)(e), § 87(2)(f)

Officers from the BLAST unit, including PO Calafiore, PO Celestin, and PO Coffey, proceeded to “enter” the backyard and driveway of the house to “secure” the backyard to ensure that no one removed anything from the backyard. They denied having searched the backyard at this time. Shortly after they entered the backyard, females from inside the house and Sgt. Milligan and Det. Gray entered the backyard. It was at this time that Sgt. Milligan and Det. Gray searched for and found the gun.

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that, at the time she entered the backyard, there were some officers in the backyard already and others were entering. She stated that the officers did not begin searching the backyard until after she arrived in the backyard and spoke to the officers. She stated that she asked the officers if they had a warrant and one of them replied, “We don’t need it, your house is under investigation.” § 87(2)(b) asked, “Why is my house under investigation?” and the officer replied, “You’ll see.” The officers then began searching around the backyard. One of the officers picked up a bag from the ground and then pulled out what appeared to be a gun from the bag.

Sgt. Milligan stated that they entered and searched the backyard without a search warrant because, “It was an unfenced, wide-open common yard § 87(2)(e), § 87(2)(f)

§ 87(2)(e), § 87(2)(f) the exigency of retrieving a firearm in such an emergency where anyone, even a small child, can pick up the firearm we entered the backyard to retrieve the firearm.” Det. Gray stated that he did not seek a search warrant because “of the situation that § 87(2)(e), § 87(2)(f) there was a loaded gun and that it was out within reach of the public and adding to that as well was that there were children and other people in that backyard that could have gained access to that gun very easily.”

The courts have established that warrantless entries into private homes are presumed unconstitutional. Exceptions to this rule include consent, hot pursuit, and, as cited by both Sgt. Milligan and Det. Gray, exigent circumstances, as established in People v. McBride, 14 N.Y.3d 440 (2010) (BR4). In regards to the exigent circumstances exception, the courts utilize a six-part test: “(1) the gravity or violent nature of the offense with which the suspect is to be charged; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause...to believe that the suspect committed the crime; (4) strong reason to believe that the suspect is in the premises being entered; (5) a likelihood that the suspect will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry.” McBride. In regards to whether an area outside a house is within its curtilage, the courts utilize a four-part test: “Its proximity to the house, whether it is within an enclosure that surrounds the house, the nature of the uses to which it is put, and the steps that the resident takes to protect the area from observation.” People v. Vernon, 954 N.Y.S.2d 835 (2012) (BR5). Furthermore, Vernon notes that entry to secure an area where a firearm is believed to be, in order to neutralize its immediate danger while a search warrant is being sought, may be permissible even in instances where an entry to search for said firearm would not be.

The location of the gun is not disputed in this incident: It was in the backyard immediately behind § 87(2)(b) (BR6 – Pictures of House). § 87(2)(g)

§ 87(2)(g) The house is a free-standing two-story one-family home with driveways on both sides, and a fence surrounding the front yard of the house but not the house itself or the backyard. The backyard is accessible from the sidewalk via either driveway and there is no fence or gate blocking entry. There are, however, short chain-link fences on either side separating it from the backyards of the houses to either side of § 87(2)(b). Small portions of the backyard can be seen from the sidewalk at direct angles but is largely blocked from view by § 87(2)(b) and the adjacent houses. The backyard is described by its residents as containing a barbeque pit, a barbeque grill, a chair, and a bed for their dog.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be **Exonerated** and **Allegation E** be **Substantiated**.

Allegation F – Abuse of Authority – At § 87(2)(b), PO Junior Celestin threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that, while the officers were in the backyard, she was walking around the backyard. She was told to sit down by an officer but she refused to do so. She then walked to and leaned on a fence. PO Celestin told her, “You need to move from over there. You’re making things suspicious; you’re making it seem like you’re trying to prevent somebody from coming over here.” § 87(2)(b) walked to the grill and began to tap on the grill and sing. She was told again by another officer to sit down, but she refused to do so. She continued to tap on the grill and sing. PO Celestin then said to her, “You need to sit down. You need to hurry up and sit down before I have to put you in handcuffs.” § 87(2)(b) remained standing and did not

respond. § 87(2)(b) then took out her phone in order to text a friend and PO Celestin said to her, “Put that phone away, you need to put that phone away before I have to put handcuffs on you. Now you’re trying to make it suspicious. Now you’re trying to call somebody.”

PO Celestin recalled having observed only one female in the backyard. He viewed photographs of § 87(2)(b) and § 87(2)(b) and stated that he recognized § 87(2)(b) but did not recognize § 87(2)(b) or § 87(2)(b). The only interaction he recalled with § 87(2)(b) was informing her that they were conducting an investigation and requesting that she remain in the house. PO Celestin stated that he did not threaten to arrest or handcuff a female and did not recall hearing any other officer do so. All of the other officers denied having done so or having heard any other officer do so. § 87(2)(g)

It is therefore recommended that **Allegation F** be **Unsubstantiated**.

Pod: 5

Investigator:	_____	<u>Alexander Opoku-Agyemang</u>	<u>August 10, 2015</u>
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date